

AMERICAN FORK CITY COUNCIL
NOVEMBER 9, 2021
REGULAR SESSION MINUTES

Members Present:

Bradley J. Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Ryan Hunter	Council Member
Clark Taylor	Council Member

Members Absent:

Rob Shelton	Council Member
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Staff Present:

David Bunker	City Administrator
Camden Bird	Community Services Director
Terilyn Lurker	City Recorder
Anna Montoya	Finance Officer
Aaron Brems	Fire Chief
George Schade	IT Director
Cherylyn Egner	Legal Counsel
Derric Rykert	Parks and Recreation Director
Cameron Paul	Police Chief
Scott Sensanbaugher	Public Works Director

Also present: Cameron Paul, Casandria Crane, Kathy Goodwin, LaRee Parkinson, Coral Edwards and husband, Anne Marie Hatch, Josh Barton, Kelsey Pope and husband, Amie Clayton, Jason Rupp, Heidi Rodeback, Stan and Cathy Street, Wayne Anderson, Agnetta Schooley, John Woffinden, Brandon Nelson, Ron Gately, and three additional people.

The American Fork City Council met in a regular session on Tuesday, November 9, 2021, in the American Fork City Hall, 31 North Church Street, commencing at 7:00 p.m.

REGULAR SESSION

1. Pledge of Allegiance; Invocation by Council Member Hunter; roll call.

Mayor Bradley J. Frost welcomed everyone to the meeting. Those present recited the Pledge of Allegiance and an invocation was offered by Council Member Hunter. Roll call was taken; Council Member Shelton was excused from the meeting.

2. Presentation of the GFOA Distinguished Budget Award.

Brandon Nelson, president of Utah Government Finance Officers Association, was here to present the City with the GFOA Distinguished Budget Award for fiscal year 2021. He explained how cities earn this recognition through high quality budget preparation and meet four different criteria: creating policy documents, financial plans, an operation guide, and communication tool. He congratulated the City for earning this award. Anna Montoya, Finance Director, was invited forward to receive the award.

3. Acknowledgement of the Exemplary Service Award to the American Fork Library by the Utah State Library.

Mayor Frost invited library staff and library board members forward. As COVID has created a major risk, Mayor Frost noted the City felt the library should close temporarily. Casandria Crane, the Library Director, pushed to remain open. Staff members found a way to serve the citizens of this community. On behalf of the City Council and State of Utah, he presented the award to the Library staff.

4. Twenty-minute public comment period - limited to two minutes per person.

There were no public comments.

5. City Administrator's Report

City Administrator David Bunker thanked staff for working so hard over the last year.

6. Council Reports

Council Member Ryan Hunter reviewed the Storm Water Management Plan. He thanked the staff for working so hard over the course of the last year.

Council Member Kevin Barnes said Halloween on Main Street was a success. He thanked the Chamber of Commerce for organizing the event and for all the businesses who participated. This week was Veterans Day, so Council Member Barnes acknowledged a video on the website paying tribute to Veterans; he encouraged everyone to watch the video and echoed appreciation for staff's hard work.

Council Member Staci Carroll mentioned the Chamber of Commerce was having a keynote event of the year tomorrow; it was the business summit where they combine with other chambers in the valley and hear from businesses in the community.

Council Member Clark Taylor said it was nice to see so many people in the council chambers. He congratulated Mayor Frost, Council Member Carroll, and Council Member Hunter. Council Member Taylor then acknowledged the Fox Hollow Board Meeting held a couple of months ago which was over on the revenue and under on expenditures. He noted this was the biggest year they have had, and staff had done a tremendous job. Council Member Taylor added that the new Golf Pro made several changes, and they were able to conserve water while keeping the golf course ready to play.

7. Mayor's Report

Mayor Frost spoke on his opportunity to hand out awards at the high school band regional. He noted the AFHS Band swept the 6A competition and represented the community at the state championship; this is over 30 years in a row they have won the championship. He also acknowledged they won the western regionals. Next, Mayor Frost spoke on Halloween on Main. He praised the event and noted the big turnout. Lastly, Mayor Frost acknowledged the death of Vern Pyne, who as a part of American Fork Chick Fil A attended most every event the City held for years.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the September 21, 2021, work session minutes.
2. Approval of the September 28, 2021, City council minutes.
3. Approval of the October 5, 2021, work session minutes.
4. Approval of the authorization to release the Improvements Durability Retainer of \$ 17,246.22 for HARTS SERVICE STATION, located at 21 North 1020 West.
5. Ratification of City payments (October 20, 2021, to November 2, 2021) and approval of purchase requests over \$50,000.

Council Member Taylor moved to approve the common consent agenda. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

ACTION ITEMS

1. Review and action on the appointment of Wayne Anderson and Agnetta Schooley to the Senior Center Board with terms ending 2024.

Council Member Taylor moved to approve the appointment of Wayne Anderson and Agnetta Schooley to the Senior Center Board with terms ending 2024. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

2. Review and action on approval of a memorandum of understanding with the Utah Department of Workforce Services for the DWS to provide water assistance benefits for eligible low-income households.

Council Member Taylor moved to approve participation in the Water Assistance Program and authorize the Finance Director to execute a memorandum of understanding with the Department of Workforce Services. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

3. Review and action on approval of a beer/alcohol beverage license for Sweet Lake LLC (dba Sweet Lake Biscuits and Limeade) located at 197 N. West State Road.

Council Member Carroll moved to approve the beer/alcoholic beverage license for Sweet Lake LLC located at 197 North West State Road. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

4. Review and action on the Water Banking Agreement for Water Shares with Layne Downs for 6.26 acre-feet of water.

Public Works Director Scott Sensanbaugher noted this was a standard water banking agreement.

Council Member Carroll moved to approve the water banking agreement for water shares with Layne Downs for 6.26 acre-feet of water. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

5. Review and action on the Water Banking Agreement for Water Shares with Layne Downs for 3.00 acre-feet of water.

Council Member Taylor moved to approve the water banking agreement for water shares with Layne Downs for 3.00 acre-feet of water. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

6. Review and action on a resolution approving a land use map amendment located at 100 West 1500 South from the resort to the design industrial designation.

Council Member Carroll commented that she wanted to be careful when working on designs close to the lake. She spoke with Mr. Bunker and acknowledged the rationale for this change. She felt they needed to be cautious with what was approved in the south side of town.

Council Member Barnes asked if they needed to designate certain zones for this project. Mr. Bunker noted there are resort zones for those uses, and the Planning Commission can recommend a change to those zones; he acknowledged this was an area that made sense to change.

Council Member Barnes moved to adopt Resolution No. 2021-11-38R approving the land use map amendment located at 100 West 1500 South from the resort to the design industrial designation. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Kevin Barnes, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

7. Review and action on an ordinance approving a zone map amendment from the M-1 Marina to the PI-1 Planned Industrial zone, located in the area of 100 West 1500 South.
Council Member Taylor moved to adopt Ordinance No. 2021-11-52 approving the zone map amendment at 100 West 1500 South from the M-1 Marina to the PI-1 Planned Industrial zone. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

8. Review and action on an agreement with Mobile Digital Insights, LLC, for fiber optics citizen feasibility study.

Community Services Director Camden Bird stated this was one of their strategic goals, and they would further investigate the feasibility of fiber network. He noted staff wants to initiate this with a survey to the citizens, and are hoping to have this go out soon.

Council Member Taylor noted they are coming to one of the busiest times of the year and asked if the results will be as good. He stressed that they need to ensure the survey is of good quality to which Mr. Bird felt this would not be an issue. Mr. Gately said they gave emails and phone numbers for many citizens and he did not see a problem.

Mayor Frost asked how many homes typically responded to their annual survey. Mr. Bird said 1500. Council Member Taylor acknowledged that they could tell how many are unique and how many are doubles of previous surveys. Mr. Gately stated that they will make sure they get only one response per email and will know who has responded and to whom they need.

Council Member Carroll pointed out one of the issues was the cost of the proposal. Mr. Gately said they have built their business over the last five years and have a lot of experience. He said he would work to understand the challenges they need to address and make sure they have the correct questions included. Mr. Bird said they can develop questions addressing cost. Mr. Gately indicated they could share the questions prior to the survey.

Council Member Hunter moved to approve the agreement with MDI for \$9,370 and authorize the City to sign the agreement. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

9. Review and action on an ordinance repealing Section 17.10.400 and adopting Chapter 17.19 of the American Fork City Code related to pioneering agreements for public facilities.

Mr. Sensanbaugher noted that this action modifies the pioneering agreements they have in the code. He said much of this was cleaning up the language and updating it to reflect current practice. Mr. Sensanbaugher added that one of the new provisions within this code was to make it so the City could have an agreement and be reimbursed from the benefiting properties.

Legal Counsel Cherylyn Egner noted there has been some discussion on the ten-year limitation and whether the city was included in this provision. Council Member Carroll clarified that the City would qualify as well. Ms. Egner answered and said the City would fall under the developer in the code. Council Member Barnes agreed that they should not be treated differently and should follow the law. He felt it should be clear in the code. Ms. Egner said they can make the motion to include the addition line requiring the City's agreement to be bound by the same terms and conditions as the developer.

Council Member Taylor moved to adopt Ordinance No. 2021-11-53 repealing Section 17.10.400 and adopting Chapter 17.19 of the American Fork City Code relating to pioneering agreements with the addition of a line of clarity that the City will abide by the same stipulations outlined. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

10. Review and action on a resolution adopting the American Fork City Storm Water Management Plan.

Mr. Sensanbaugher began by noting they have been discussing this for a long time. He thanked Council Member Hunter and Mr. John Woffinden for their contributions. Mr. Sensanbaugher went on to note that they are pending approval and waiting to notify the state.

Mr. Bunker noted this was a significant issue. He said when they have a renewal of the MS4 permit, increased requirements will be placed on municipalities. He stressed this unfunded mandate is required. He commended staff and the consultants in figuring out how to accomplish those tasks in the most economical way. If they do not approach this the right way, Mr. Sensanbaugher noted there could be fees which will need to be evaluated.

Council Member Hunter moved to approve Resolution No. 2021-11-39R adopting the American Fork City Storm Water Management Plan as presented and authorize the City to sign all necessary documents. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

11. Review and action on approval of a real estate purchase contract for property located at approximately 100 East and 1100 South.

Council Member Hunter moved to approve the real estate purchase contract with Windy City Development LLC for the purchase of approximately 30.77 acres located at approximately 100 East 1100 South. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

Mayor Frost noted this is historic in his mind and was akin to the Art Dye of the south side of the City. He said it was 30 acres though he anticipated 28 acres for parkland. He stressed that they have purchased land that will be a legacy for the City for generations to come.

12. Review and action on an ordinance approving amendments to Section 15.01.1430 of the American Fork City Code relating to Cul-de-sacs.

Mr. Sensanbaugher noted this item was another clarification of the code. He pointed out the change of details makes it clear what the sidewalk widths and park strips are in culs-de-sac.

Council Member Taylor said, given all the discussions they have had on park strip ownership, he thought that eight-feet of park strip wasn't feasible. Council Member Carroll agreed; she felt it was excessive as well. Mr. Sensanbaugher indicated they could bring back a modified street cross-section reflecting a smaller park stripe if the council would like.

Mayor Frost noted that as winter starts, they should look at ways to save water and make that a part of the city code. Mayor Frost said they will bring this forward in the future with possible changes.

Council Member Barnes moved to adopt Ordinance No. 2021-11-54 approving the amendment to Section 15.01.1430 of the City code relating to cul-de-sacs. Council Member Carroll seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Kevin Barnes, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

13. Consideration and action to enter into a closed session to discuss items described in Utah State Code 52-4-204 and 52-4-205.

Council Member Taylor moved to enter into a closed session at 8:08 p.m. to discuss litigation. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

Mayor Frost stated they will convene in the closed session downstairs. At the end of that meeting, he stated they will reconvene to regular session and then end the meeting from that room.

The American Fork City Council met in a closed session to discuss litigation at 8:15 p.m. Those present included Mayor Brad Frost, Council Member Kevin Barnes, Council Member Staci Carroll, Council Member Ryan Hunter, and Council Member Taylor. Also present included City Administrator David Bunker, Legal Counsel Cherylyn Egner, and City Recorder Terilyn Lurker.

The closed session was audio recorded as required by state law.

Council Member Hunter moved to return to regular session at 9:00 p.m. Council Member Taylor seconded the motion. All were in favor.

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Staci Carroll, Ryan Hunter, Clark Taylor
ABSENT:	Rob Shelton

14. Adjournment.

Council Member Taylor moved to adjourn the meeting. Council Member Hunter seconded the motion. All were in favor.

The meeting adjourned at 9:00 p.m.



Terilyn Lurker, City Recorder